

FILED
2022 JUN 21 01:56 PM
KING COUNTY
SUPERIOR COURT CLERK
E-FILED

CASE #: 22-2-09380-3 KNT

CERTIFICATION - State of Washington, County of King. The undersigned, duly authorized clerk of the King County District Court, Washington, hereby certifies that the document on which this stamp is imprinted is a true and correct copy of the original filed in the Court.

SIGNED _____

_____, Court Clerk

King County District Court	
State of Washington	
East Division, Issaquah Courthouse ☐	
Melvina Catherine Manning	05/13/1959
Petitioner	DOB
Zackariah Jeremiah Bennett	01/07/1981
Respondent	DOB

ORIGINATING COURT NO. 22CIV09428KCX

DV COURT CAUSE NO.

**ORDER TRANSFERRING
DOMESTIC VIOLENCE CASE
AND SETTING HEARING (ORTRDV)**
(Clerk's Action Required)

1. A petition requesting the issuance of an Order for Protection was filed in this court on 06/17/2022 (Date).
2. Based upon the petition, testimony and the case record, the court finds that venue in this case should be transferred to a division with a domestic violence court for a full hearing.

IT IS ORDERED that this case and copies of all related legal documents be transferred to the division of the King County District Court listed below.

THE TEMPORARY ORDER FOR PROTECTION IS EFFECTIVE UNTIL THE HEARING SCHEDULED AT <u>8:30</u> <u>a.m.</u>/p.m. ON <u>July 1, 2022</u> (Date) at	
South Div, RJC Court, 401 4th Ave. N., Room GB, Kent, WA 98032 (Maleng Regional Justice C	
The respondent is directed to appear and show cause why an order for protection should not be made effective for one year or more, and why the court should not order the relief requested by the petitioner or other relief, including electronic monitoring, payment of costs, and treatment. FAILURE TO APPEAR AT THE HEARING MAY RESULT IN THE COURT GRANTING THE REQUESTED RELIEF.	

DATED 06/21/2022

Michael J. Finkle
Judge Michael Finkle ☐

CERTIFICATION – State of Washington, County of King
The undersigned, duly authorized clerk of the King County District Court, Washington, hereby certifies this document is a true and correct copy of the original filed in the Court.

Dated: _____

Court Clerk: _____

**STATE OF WASHINGTON
King County District Court**

EAST DIVISION, ISSAQUAH COURTHOUSE

Melvina Catherine Manning

Petitioner

vs.

Zackariah Jeremiah Bennett

Respondent

No. 22CIV09428KCX

**Temporary Order for Protection and
Notice of Hearing (TMORPRT)**

(Clerk's Action Required)

Next Hearing Date/Time:

July 1, 2022

8:30AM

At:

MRJC
401 4th Ave N.
Kent, WA 98032

Names of minors: ☐ No minors Involved

First Middle Last Age

Timothy Edward Bennett, II - 15

Respondent Identifiers

Sex	Race	Hair
Height	Weight	Eyes

Respondent's Distinguishing Features:

Caution:

Access to weapons: ☐ yes ☐ no ☒ unknown

The court finds:

The court has jurisdiction over the parties, the minors, and the subject matter. The respondent will be served notice of his or her opportunity to be heard at the scheduled hearing. RCW 26.50.070. For good cause shown, the court finds that an emergency exists and that a Temporary Protection Order should be issued without notice to the respondent to avoid irreparable harm or injury.

The court orders:

- ☒ 1. Respondent is **restrained** from causing petitioner physical harm, bodily injury, assault, including sexual assault, and from molesting, harassing, threatening, or stalking
☒ petitioner ☒ the minors named in the table above ☐ these minors only:
- ☒ 2. Respondent is **restrained** from harassing, following, keeping under physical or electronic surveillance, cyberstalking as defined in RCW 9.61.260, and using telephonic, audiovisual, or other electronic means to monitor the actions, locations, or wire or electronic communication of ☒ petitioner ☒ the minors named in the table above ☐ only the minors listed below ☐ members of the victim's household listed below ☐ the victim's adult children listed below:

Additional no contact provisions are on the next page.



The terms of this order shall be effective until: **the end of the hearing, noted above.**

- ☒ 3. Respondent is **restrained** from coming near and from having any contact whatsoever, in person or through others, by phone, mail, or any means, directly or indirectly, except for mailing or service of process of court documents by a 3rd party or contact by respondent's lawyer(s) with ☒ petitioner ☒ the minors named in the table above ☐ these minors only:

- ☒ 4. Respondent is **restrained** from going onto the grounds of or entering petitioner's ☒ residence ☒ workplace ☒ school ☒ the day care or school of ☒ the minors named in the table above ☐ these minors only:

☐ other:

☒ Petitioner's address is confidential. ☐ Petitioner waives confidentiality of the address which is:

Petitioner's address remains confidential.

- ☒ 5. Petitioner shall have exclusive right to the residence petitioner and respondent share. The respondent shall immediately **vacate** the residence. The respondent may take respondent's personal clothing and respondent's tools of trade from the residence while a law enforcement officer is present. ☒ This address is confidential. ☐ Petitioner waives confidentiality of this address which is:

Petitioner's address remains confidential.

- ☒ 6. Respondent is **prohibited** from knowingly coming within, or knowingly remaining within 1000 feet _____ (distance) of: petitioner's ☒ residence ☒ workplace ☒ school ☒ the day care or school of ☒ the minors named in the table above ☐ these minors only:

☐ other:

- ☐ 7. Petitioner shall have possession of essential personal belongings, including the following:

☐ 8. Petitioner is granted use of the following vehicle:
Year, Make & Model _____ License No. _____

☐ 9. **Other:**

Protection for minors:

☐ 10. Petitioner is **granted** the temporary care, custody, and control of ☐ the minors named in the table above ☐ these minors only:

☐ 11. Respondent is **restrained** from interfering with petitioner's physical or legal custody of ☐ the minors named in the table above ☐ these minors only:

☐ 12. Respondent is **restrained** from removing from the state ☐ the minors named in the table above ☐ these minors only:

☒ **Surrender of Weapons Order**

The court finds that:

- ☒ Irreparable injury could result if the order to surrender weapons is not issued.
- ☒ Respondent's possession of a firearm or other dangerous weapon presents a serious and imminent threat to public health or safety or the health or safety of any individual.
- ☒ Irreparable injury could result if the Respondent is allowed to access, obtain, or possess any firearms or other dangerous weapons, or obtaining or possessing a concealed pistol license.

The Respondent must comply with the **Order to Surrender Weapons (and Prohibit Weapons, if checked below) Issued Without Notice filed separately which**

states: Respondent shall immediately surrender all firearms, other dangerous weapons, and any concealed pistol licenses.

☒ Respondent is prohibited from accessing, obtaining, or possessing any firearms or other dangerous weapons, or obtaining or possessing a concealed pistol license.

(Note: Also use form number All Cases 02-030.)

The respondent is directed to appear and show cause why this temporary order should not be made effective for one year or more and why the court should not order the relief requested by the petitioner or other relief which may include electronic monitoring, payment of costs, and treatment. **Failure to Appear at the Hearing May Result in the Court Granting Such Relief. The Next Hearing Date is Shown on Page One.**

Warnings to Respondent: A violation of provisions 1 through 6 of this order with actual notice of its terms is a criminal offense under chapter 26.50 RCW and will subject you to arrest. If the violation of the protection order involves travel across a state line or the boundary of a tribal jurisdiction, or involves conduct within the special maritime and territorial jurisdiction of the United States, which includes tribal lands, you may be subject to criminal prosecution in federal court under 18 U.S.C. § 2261, 2261A, or 2262.

A violation of provisions 1 through 6 of this order is a gross misdemeanor unless one of the following conditions apply: Any assault that is a violation of this order and that does not amount to assault in the first degree or second degree under RCW 9A.36.011 or 9A.36.021 is a class C felony. Any conduct in violation of this order that is reckless and creates a substantial risk of death or serious physical injury to another person is a class C felony. Also, a violation of this order is a class C felony if you have at least two previous convictions for violating a protection order issued under Titles 7, 10, 26 or 74 RCW.

If the court issues a final protection order, and your relationship to the petitioner is that of spouse or former spouse, parent of a common child, or former or current cohabitant as intimate partner, including a current or former registered domestic partner, you may not possess a firearm or ammunition for as long as that final protection order is in effect. 18 U.S.C. § 922(g)(8). A violation of this federal firearms law carries a maximum possible penalty of 10 years in prison and a \$250,000 fine. An exception exists for law enforcement officers and military personnel when carrying department/government-issued firearms. 18 U.S.C. § 925(a)(1). If you are convicted of an offense of domestic violence, you will be forbidden for life from possessing a firearm or ammunition. 18 U.S.C. § 922(g)(9); RCW 9.41.040.

You Can Be Arrested Even if the Person or Persons Who Obtained the Order Invite or Allow You to Violate the Order's Prohibitions. You have the sole responsibility to avoid or refrain from violating the order's provisions. Only the court can change the order upon written application.

Pursuant to 18 U.S.C. § 2265, a court in any of the 50 states, the District of Columbia, Puerto Rico, any United States territory, and any tribal land within the United States shall accord full faith and credit to the order.

Warning: A person may be guilty of custodial interference in the second degree if they violate provisions 10, 11, or 12.

Washington Crime Information Center (WACIC) Date Entry

It is further ordered that the clerk of the court shall forward a copy of this order on or before the next judicial day to King County Sheriff **Where**
Petitioner Lives which shall enter it into WACIC.

Service

- ☒ The clerk of the court shall also electronically forward a copy of this order on or before the next judicial day to Other Agency **Where**
Respondent Lives which shall personally serve the Respondent and shall promptly complete and return to this court proof of service. The service packet shall include a copy of this order, petition, notice of hearing, any supporting declarations or other materials, and any temporary order to surrender and prohibit weapons.
- ☐ (Only if surrender of weapons not ordered) Petitioner has made private arrangements for service of this order.
- ☐ Service by mail is permitted by separate order. The clerk of the court shall prepare a service packet for Petitioner.

Law Enforcement Assistance

- ☐ Law enforcement shall assist petitioner in obtaining:
- ☐ Possession of petitioner's ☐ residence ☐ personal belongings located at: ☐ the shared residence ☐ respondent's residence ☐ other:
- ☐ Custody of the above-named minors, including taking physical custody for delivery to petitioner (if applicable).
- ☐ Other:

Important! Protected Person, if you ask for it, you have the right to be notified if the restrained person gets their surrendered firearms back. You must contact the law enforcement agency that has the firearms to ask for this notice. The Proof of Surrender in the court file should say which law enforcement agency has the firearms. RCW 9.41.340.

Dated: June 21, 2022 at 1:41 PM



Judge Michael J. Finkle

Presented by:

Signature of Petitioner/Lawyer _____ WSBA No. _____ Print Name _____

The petitioner or petitioner's lawyer must complete a Law Enforcement Information Sheet (LEIS).

State of Washington
King County District Court
EAST DIVISION, ISSAQUAH COURTHOUSE

Melvina Catherine Manning
Petitioner

vs.

Zackariah Jeremiah Bennett
Respondent

No. 22CIV09428KCX

Order to Surrender Weapons Issued
without Notice

☒ and Prohibit Weapons
(ORWPN)

(Clerk's Action Required)

Next Hearing Date/Time:

July 1, 2022

8:30 AM

At:

MRJC
401 4th Ave. N
Kent, WA 98032

This order is based on the findings in the order issued on June 21, 2022 (date).

Restrained person (name) Zackariah Jeremiah Bennett:

You must **immediately surrender** all firearms and other dangerous weapons in your possession or control, and any concealed pistol licenses issued under RCW 9.41.070 to the local law enforcement agency: Other Agency (fill in if known).

You must immediately surrender all firearms and other dangerous weapons subject to this order, including but not limited to the following:

Attach sheet if there are more to list.

- ☒ You are prohibited from accessing, obtaining, or possessing any firearms or other dangerous weapons, or obtaining or possessing a concealed pistol license.

This order expires **At the same time as the protection order entered under this case number.**

If you have firearms, other dangerous weapons, or concealed pistol licenses:



Step 1: When served, **immediately** surrender all firearms, other dangerous weapons, and concealed pistol licenses to the law enforcement officer who serves you.

or

Step 1: If you were present at the hearing at which the order was entered, **immediately** surrender all firearms, other dangerous weapons, and concealed pistol licenses to the local law enforcement agency on the same day as the hearing. Contact the local law enforcement agency for directions on how to immediately surrender the firearms, dangerous weapons and concealed pistol licenses.

For all cases:

Step 2: **Get a receipt** for the firearms, other dangerous weapons, and concealed pistol licenses from law enforcement.

Step 3: **Complete** the *Proof of Surrender* form and file it with the receipt.

Step 4: **File** the documents with the clerk of the court within 5 judicial (court) days.

If you do not have firearms, other dangerous weapons, or concealed pistol licenses:

Step 1: **Immediately** complete and sign the *Declaration of Non-Surrender* form.

Step 2: **File** the declaration with the clerk of the court within 5 judicial (court) days.

The Law Enforcement Officer serving this order shall inform you that the order is in effect upon service and that you must immediately surrender all firearms, other dangerous weapons and any concealed pistol licenses issued under RCW 9.41.070. The serving officer shall conduct any search for firearms, other dangerous weapons, and concealed pistol licenses as permitted by law. The serving officer shall take possession of:

- All firearms,
- Other dangerous weapons,
- Concealed pistol licenses belonging to respondent,

that are surrendered, in plain sight, or discovered during a lawful search. RCW 9.41.801.

Washington Crime Information Center (WACIC) Data Entry

The clerk of the court shall forward a copy of this order, with the temporary protection order, on or before the next judicial day to the

King County Sheriff _____

where

the protected person lives which shall enter this order into WACIC.

Service

☒ The clerk will electronically forward this order to

Other Agency _____

where

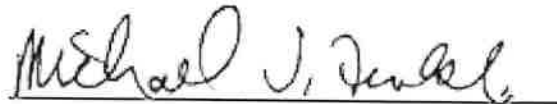
the respondent lives for service of respondent.

☐ The restrained person appeared and was informed of the order by the court; further service is not required.

Warning!

- If you fail to comply with this order, you may be found in contempt of court and/or be charged with a misdemeanor and punished accordingly.
- You may also be charged with a crime up to and including a **felony** if you are found to own, possess, or control a firearm or other dangerous weapon.

Dated: June 21, 2022 at 1:42 PM



Judge Michael J. Finkle

I acknowledge receipt of a copy of this order.

Signature of Restrained Person

Print Name

Signature of Restrained Person's Attorney WSBA No. Print Name

Signature of Protected Person or Attorney WSBA No. Print Name

You may download the forms listed in this order from the Washington Courts' forms website:
<http://www.courts.wa.gov/forms/>.

FILED

JUN 17 2022

KCDC - East Division
Issaquah Courthouse

STATE OF WASHINGTON
COUNTY OF KING
East Division, Issaquah Courthouse

melvina manning
on behalf of
Timothy Edward Bennett II, minor

Petitioner

vs.

Zackariah Jeremiah Bennett
Respondent

No. 22CIV09428KCX

Petition for Order for Protection
(PTORPRT)

1. ☒ I am a victim of domestic violence committed by the respondent.
☒ A member of my family or household is a victim of domestic violence committed by the respondent.
☐ I am a ☐ guardian ☐ guardian ad litem ☐ next friend of a minor who is 13 to 15 years of age and is a victim of domestic violence in a dating relationship with a person age 16 or older. The name of the minor victim is _____. This person's identifying information is provided in paragraph 5 below.
2. ☒ The victim lives in this county.
☐ The victim left their residence because of abuse and this is the county of their new or former residence.
3. The victim's age is: Respondent's age is:
☒ Under 16 ☐ 16 or 17 ☐ 18 or over ☐ Under 16 ☐ 16 or 17 ☒ 18 or over
4. The victim and the respondent are:
☐ Intimate Partners because they are:
☐ current or former spouses or domestic partners ☐ parents of a child-in-common
☐ age 16 or older and are/were in a dating relationship, and are currently residing together or resided together in the past ☐ age 16 or older and are/were in a dating relationship, but have never resided together.
☒ Family or household members because they are:
☐ current or former adult cohabitants as roommates ☐ adult in-laws ☐ adults related by blood ☒ parent and child ☐ stepparent and stepchild ☒ grandparent and grandchild.

5. Identification of Minors (if applicable) ☐ No Minors involved.

Name (First, Middle Initial, Last)	Age	Race	Sex	How Related to Petitioner	Respondent	Resides with
Timothy E Bennett	15	W	M	Grandson	son	Grandparents

6. Other court cases or other restraining, protection or no-contact orders involving me, the minors and the respondent: CUSTODY DECREE

Case Name	Timothy E Bennett II Melvinia Robinson		
Case Number	08-3-0395645EA		
Court/County	King		

I Request an Order for Protection following a hearing that will:

- ¹ ☒ **Restrain** respondent from causing any physical harm, bodily injury, assault, including sexual assault, and from molesting, harassing, threatening, or stalking ☒ me ☒ the minors named in paragraph 5 above ☐ these minors only:

(If the court orders this relief, and you and the respondent are current or former spouses or domestic partners, parents of a child-in-common, age 16 or older and are/were in a dating relationship, and are currently residing together or resided together in the past, age 16 or older and are/were in a dating relationship, but have *never* resided together, the respondent will not be able to obtain or possess a firearm, other dangerous weapon, ammunition, or concealed pistol license for the duration of the order.)

- ² ☒ **Restrain** respondent from harassing, following, keeping under physical or electronic surveillance, cyberstalking as defined in RCW 9.61.260, and using telephonic, audiovisual, or other electronic means to monitor the actions, locations, or wire or electronic communication of ☒ me ☒ the minors named in paragraph 5 above ☐ only the minors listed below; ☒ members of the victim's household listed below ☐ the victim's adult children listed below:

John Manning
Melvinia Manning

³ ☒ **Restrain** respondent from coming near and from having any contact whatsoever, in person or through others, by phone, mail, or any means, directly or indirectly, except for mailing of court documents, with ☒ me ☒ the minors named in paragraph 5 above, subject to any court-ordered visitation ☐ these minors only, subject to any court-ordered visitation:

⁴ ☒ **Exclude** respondent from ☐ our shared residence ☒ my residence ☒ my workplace ☒ my school ☒ the residence, day care, or school of ☒ the minors named in paragraph 5 above ☐ these minors only:

☐ other:

You have a right to keep your residential address confidential.

⁵ ☐ **Direct** respondent to vacate our shared residence and restore it to me.

⁶ ☒ **Prohibit** respondent from knowingly coming within, or knowingly remaining within _____ (distance) of ☐ our shared residence ☒ my residence ☒ my workplace ☒ my school ☒ the day care or school of ☒ the minors named in paragraph 5 above. ☐ these minors only:

☐ other:

⁷ ☐ **Grant** me possession of essential personal belongings, including the following:

⁸ ☐ **Grant** me use of the following vehicle:

Year, Make & Model _____ License No. _____

⁹ ☐ **Other:**

Protection involving a minor:

- ¹⁰ ☐ Subject to any court-ordered visitation, **Grant** me the care, custody and control of
☐ the minors named in paragraph 5 above ☐ these minors only:

- ¹¹ ☒ **Restrain** respondent from interfering with my physical or legal custody of ☒ the minors named in paragraph 5 above ☒ these minors only:

Timothy Edward Bennett II

- ¹² ☒ **Restrain** the respondent from removing from the state: ☒ the minors named in paragraph 5 above ☒ these minors only:

Timothy Edward Bennett II

Additional Requests:

- ¹³ ☐ **Direct** the respondent to participate in appropriate treatment or counseling services.
- ¹⁴ ☐ **Require** the respondent to pay the fees and costs of this action.
- ¹⁵ ☐ **Remain Effective** longer than one year because respondent is likely to resume acts of domestic violence against me if the order expires in a year.

Protection involving pets.

- ¹⁶ ☐ **Grant** me exclusive custody and control of the following pet(s) owned, possessed, leased, kept, or held by me, respondent, or a minor child residing with either me or the respondent. (Specify name of pet and type of animal.):

- ¹⁷ ☐ **Prohibit** respondent from interfering with my efforts to remove the pet(s) named above.

- ¹⁸ ☐ **Prohibit** respondent from knowingly coming within, or knowingly remaining within _____ (distance) of the following locations where the pet(s) are regularly found:

☐ petitioner's residence (You have a right to keep your residential address confidential.)

☐ _____ Park

☐ other: _____

Protection from Firearms and Other Dangerous Weapons

- ¹⁹ ☐ **Require** the respondent to surrender all firearms, other dangerous weapons, and any concealed pistol licenses, and prohibit the respondent from accessing, obtaining, or possessing firearms, other dangerous weapons, or concealed pistol licenses.

Notice: If you are the respondent's intimate partner, after actual notice and an opportunity to be heard at the hearing, the court may be required to order the respondent to surrender firearms, other dangerous weapons, or concealed pistol licenses.

**I want emergency temporary protection effective immediately, that lasts
(up to 14 days) until the court hearing:**

- ☒ An emergency exists as described below. I request that a **Temporary Order for Protection** granting the relief requested above in 1) through 12) be issued immediately, without prior notice to the respondent, to be effective until the hearing.
- ☐ I also request temporary surrender all firearms, other dangerous weapons, and any concealed pistol licenses without notice to the other party because irreparable injury could result if an order is not issued until the hearing.

What irreparable harm would result if an order is not issued immediately without prior notice to the respondent? *He will be back to our residence, he will be angry!*

The respondent was advised on 6/23/2019 via text msg he was not allowed on our property when he tried to lure Timothy Bennett out of the home when Grandparents were at a wedding, 6/12/2022 He once again came to our residence aggressively demanding to speak with Timothy Bennett. Respondent refused to leave, KC Sheriff case no K22162076

Request for Special Assistance from Law Enforcement Agencies:

I request the court order the appropriate law enforcement agency to assist me in obtaining:

- ☐ Possession of my residence. ☐ Possession of the vehicle designated above.
- ☐ Possession of my essential personal belongings at ☐ the shared residence
- ☐ respondent's residence
- ☐ other location _____
- ☐ Custody of ☐ the minors named in paragraph 5 above ☐ these minors only (if applicable):

☐ Other:

"Domestic violence" means physical harm, bodily injury, assault, including sexual assault, stalking, Or inflicting fear of imminent physical harm, bodily injury or assault between family or household members.

Statement: The respondent has committed acts of domestic violence as follows. (Describe specific acts of domestic violence and their approximate dates, beginning with the most recent act. You may want to include police responses.)

Describe the most recent violent act, fear or threat of violence, and why the temporary order should be entered today without notice to the respondent:

6/12/2022 case no K22162076
Respondent, his wife and 2 children arrived at our residence unannounced, knowing he was not allowed on our property. Respondent was at our residence on 6/23/2019 while Grandparents were at a wedding and tried to lure Timothy Bennett out of the home. He was advised via text to not come back. Respondent was verbally aggressive toward victim on 6/12/2022

Describe the past incidents where you experienced violence, where you were afraid of injury or where the respondent threatened to harm or kill you:

2008-2010 threats were made towards Grandparents
Verbal and written harassment has been ongoing for years.

Respondent posted on his social media he was trying to find Timothy Bennett at his school. Post was made on April 03, 2022

Describe any violence or threats towards children:

Respondent became verbally aggressive when Timothy advised he didn't want to see or talk to the respondent.

Describe any stalking behavior by respondent, including use of telephonic, audiovisual or electronic means to harass or monitor:

no

Describe medical treatment you received and for what:

no

Describe any threats of suicide or suicidal behavior by the respondent:

no

Does the respondent own or possess firearms? ☐ Yes ☐ No

Does the respondent use firearms, weapons or objects to threaten or harm you? Please describe:

no

Has the respondent used, displayed, or threatened to use a firearm or other dangerous weapon in a felony? Please describe:

NA

Is the respondent ineligible to possess a firearm under the provisions of RCW 9.41.040? Please describe:

He is a felon

Does possession of a firearm or other dangerous weapon by the respondent present a serious and imminent threat to public health or safety, or to the health or safety of any individual? Please describe:

NA

If you are requesting that the protection order lasts longer than one year, describe the reasons why:

NA

Other:

NA

(Continue on separate page if necessary.)

Check box if substance abuse is involved: ☐ alcohol ☐ drugs ☐ other

☐ Personal service cannot be made upon respondent within the state of Washington.

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Dated: June 16, 2022 at Carnation, Washington.

Manning
Signature of Petitioner

You have a right to keep your residential address confidential. If you have one, please provide an address, other than your residence, where you may receive legal documents:

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